

Privacy Law in Plain English

Quick Reference Card — Australian Privacy Act & Drone Operations

Surveyor

Engineer

Farmer

Real Estate

Wedding & Event

Advertising

Documentary

What is Personal Data?

- Names, faces & voice recordings
 - Home address or GPS coordinates
 - Vehicle registration plates
 - Images identifying a person
 - Any data linking back to an individual
- Captured incidentally by your drone = personal data.*

The 13 Australian Privacy Principles

- APP 1** Open & transparent management of personal info
- APP 2** Anonymity and pseudonymity
- APP 3** Collection of solicited personal information
- APP 4** Dealing with unsolicited personal information
- APP 5** Notification of collection
- APP 6** Use or disclosure of personal information
- APP 7** Direct marketing
- APP 8** Cross-border disclosure
- APP 9** Adoption, use or disclosure of government identifiers
- APP 10** Quality of personal information
- APP 11** Security of personal information
- APP 12** Access to personal information
- APP 13** Correction of personal information

Your Key Obligations as a Drone Operator

Collect only what you need

Don't capture more personal data than necessary for your task.

Notify people where possible

Signage, verbal notice or client briefing before flight.

Store data securely

Encrypted drives; access controls; no USB sticks left in vehicles.

Delete when no longer needed

Agree a retention period; stick to it; document deletion.

Don't on-sell or share without consent

Raw footage is not yours to distribute without written permission.

Must be voluntary

No pressure, no implied consent from silence.

Must be informed

Person knows what data, why, and how it's stored.

Must be specific

Consent for wedding footage ≠ consent for social media.

Can be withdrawn

If withdrawn, stop collecting and delete on request.

Written is best

Verbal consent is valid but hard to prove later.

Role Quick Guide

Surveyor

- Notify adjacent land owners
- Limit imagery to subject parcel
- Blur deliverables before issue

Engineer / Inspector

- Site induction + security clearance
- Blur PII in inspection reports
- Report safety hazards immediately

Farmer

- Neighbour notification near boundaries
- Crop data = commercially sensitive
- Control agronomist data sharing

Real Estate Videographer

- Written client + neighbour consent
- Avoid neighbouring private spaces
- Agree footage retention with client

Wedding & Event

- Guest notification via signage/MC
- Extra care around children
- No live stream without consent

Advertising & Brand

- CASA approval for over-people ops
- Model releases for all talent
- Privacy review before release

Documentary & News

- Document public interest justification
- Editorial sign-off required
- Warrant needed for police requests

Data Dos & Don'ts

✓ DO

- Notify subjects before flight
- Collect only what is necessary
- Encrypt all stored footage
- Agree retention periods in writing
- Provide access on request

✗ DON'T

- Film through windows into homes
- Share footage without consent
- Keep data longer than needed
- Re-use footage for unrelated purposes
- Ignore subject access requests

Penalties for Privacy Breaches

- Serious / repeated breach: up to \$50M (body corporate)
- Individuals: up to \$2.5M per serious breach
- OAIC may investigate, conciliate or refer to court

Secure Storage Checklist

- Encrypt drives (AES-256 minimum)
- Password-protect cloud storage
- Restrict access to project team only
- Log who accesses footage and when
- Delete raw files per retention schedule
- Never store footage on public USB or personal phone